

# Amity Infra Developers Pvt. Ltd. v. State of U.P. & 5 Others

Allahabad High Court · Division Bench · 1 December 2021 · Writ - C No. 14156 of 2019 · **Writ dismissed as withdrawn; petitioner did not press the Clause 4.9 conversion challenge**

## HEADNOTE

A developer's writ challenging the amendment of Clause 4.9 of the U.P. Electricity Supply Code, 2005 — converting single-point connections into multiple-point connections — was listed with the similar Maxbills Construction petition. Pending that challenge, the Court restrained coercive disconnection of the petitioner's supply if monthly bills were paid, and permitted the licensee to process residents' applications for individual connections, subject to the writ, without hindrance from the petitioner. Clarifying that interim order, the Court held that those applications were for fresh independent connections, not for sub-meters or connections through the existing single-point meter. The writ was later dismissed as withdrawn when counsel did not press it. The validity of the Clause 4.9 amendment was not decided.

## FACTUAL SUMMARY

Amity Infra Developers Pvt. Ltd. challenged the amendment of Clause 4.9 of the U.P. Electricity Supply Code, 2005 directing conversion of single-point electricity connections into multiple-point connections. It was a developer with a single-point supply to a building whose residents were applying for individual connections. On 23 April 2019 a Division Bench listed the writ with the similar Writ-C No. 4545 of 2019 (M/s Maxbills Construction Pvt. Ltd.) and, as an interim measure, restrained coercive disconnection if monthly bills were paid, while allowing the respondents to process residents' individual-connection applications, subject to the writ, and directing the petitioner not to hinder those sanctions.

The petitioner sought clarification that the respondents were granting connections through its existing single-point meter, so billing would run through that meter. On 13 May 2019 the same Bench clarified that the 23 April order meant fresh independent connections, not sub-meters. An impleadment by Sri Anshuman Vidhu Chandra was taken on record on 15 May 2019. On 1 December 2021 counsel did not press the writ, and it was dismissed as withdrawn.

## HOLDING-UNITS

### HOLDING-UNIT · UP-2005::4.9

pending a Clause 4.9 conversion challenge, individual resident connections mean independent supply, not sub-meters through the existing single-point meter; writ later withdrawn

### QUESTION

Pending a developer's challenge to the Clause 4.9 amendment converting single-point connections to multiple-point, may the licensee process residents' applications as sub-meters billed through the existing single-point meter?

### HOLDING

No, as an interim construction of the Court's own 23.4.2019 order. The Court listed the writ with Maxbills Construction, restrained coercive disconnection if monthly bills were paid, and permitted the respondents to process residents' applications for individual connections subject to the writ, the petitioner not to hinder. On the petitioner's complaint that connections were being granted through its meter, the Court clarified on 13.5.2019 that those applications were for fresh independent connections, not for installation of any sub-meter or connection through the existing single-point meter. On 1.12.2021 counsel did not press the writ and it was dismissed as withdrawn. The amendment itself was not decided.

¶ order of 23.4.2019, order of 13.5.2019, order of 1.12.2021

### QUALIFIER

The 23.4.2019 and 13.5.2019 directions were interlocutory (Pankaj Mithal, J. and Prakash Padia, J.). The writ was dismissed as withdrawn on 1.12.2021 without a merits decision on Clause 4.9.

**FLAG** Source PDF concatenates five unnumbered order-sheets: 23.4.2019 (interim; Pankaj Mithal and Prakash Padia, JJ.), 10.5.2019 (listing for clarification; same bench), 13.5.2019 (clarification application disposed of; same bench), 15.5.2019 (impleadment taken on record; B. Amit Sthalekar and Piyush Agrawal, JJ.), and 1.12.2021 (not pressed, dismissed as withdrawn; Arvind Kumar Mishra-I and Om Prakash Tripathi, JJ.). The Court did not cite a clause number in the clarification; keyed to Clause 4.9 as the provision under challenge.

## PRINCIPLE TAGS

**amended-clause-4.9-multi-point-release-mandate-2018** The writ challenged the Clause 4.9 amendment converting single-point connections to multiple-point. The Court listed it with Maxbills Construction and gave interim protection, but counsel later did not press the petition and it was dismissed as withdrawn without deciding the amendment. ¶ [order of 23.4.2019](#), [order of 1.12.2021](#)

**clause-4.9-single-point-to-multipoint** Pending the conversion challenge, residents' individual-connection applications were to be processed as fresh independent connections, not as sub-meters or connections through the developer's existing single-point meter. The conversion mandate itself was not adjudicated. ¶ [order of 23.4.2019](#), [order of 13.5.2019](#)

**clause-4.9a-individual-owner-lt-connection-not-barred-by-builder-non-application** The developer's pending challenge to Clause 4.9, and its existing single-point supply, did not bar the licensee from processing residents' applications for individual connections; the petitioner was directed not to hinder those sanctions. ¶ [order of 23.4.2019](#)

**clause-4.9-individual-connection-is-independent-not-submeter-through-single-point** The 23.4.2019 liberty to process individual applications was clarified on 13.5.2019 to mean fresh independent connections, not installation of a sub-meter or a connection through the existing single-point meter, so that billing would not run through the developer's meter. ¶ [order of 13.5.2019](#)

## NOT DECIDED — NEGATIVE AUTHORITY

### NOT DECIDED — WHETHER THE AMENDMENT OF CLAUSE 4.9 CONVERTING SINGLE-POINT CONNECTIONS INTO MULTIPLE-POINT CONNECTIONS IS VALID

The writ was listed with Maxbills Construction as similar; counsel later did not press it and it was dismissed as withdrawn. ¶ [order of 23.4.2019](#), [order of 1.12.2021](#)

### NOT DECIDED — WHETHER THE PETITIONER'S EXISTING SINGLE-POINT CONNECTION ITSELF HAD TO BE CONVERTED TO MULTIPLE-POINT SUPPLY

Interim orders protected the connection against coercive disconnection if bills were paid and allowed independent resident connections subject to the writ; withdrawal left conversion undecided.

¶ [order of 23.4.2019](#), [order of 13.5.2019](#), [order of 1.12.2021](#)

### NOT DECIDED — WHETHER ANY PARTICULAR RESIDENT'S APPLICATION WAS TO BE SANCTIONED, AND THE EFFECT OF SRI ANSHUMAN VIDHU CHANDRA'S IMPLEADMENT

Individual sanctions were expressly subject to the writ. Impleadment was taken on record on 15.5.2019 with a week's time to object; the writ was later withdrawn without deciding those applications.

¶ [order of 23.4.2019](#), [order of 15.5.2019](#), [order of 1.12.2021](#)

## TABLE OF AUTHORITIES

| AUTHORITY                                                                                                                     | PROPOSITION                                                                                                                                                                                   | HOW TREATED | CITED BY              | TREATMENT                |
|-------------------------------------------------------------------------------------------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-------------|-----------------------|--------------------------|
| <i>M/s Maxbills Construction Pvt. Ltd. v. State of U.P. and 4 others</i><br>Writ - C No. 4545 of 2019<br>Allahabad High Court | Described as similar in nature (challenge to the Clause 4.9 single-point to multiple-point conversion); this petition was directed to be listed with it. No holding of that writ was recited. |             | <a href="#">Court</a> | <a href="#">Referred</a> |

